

## **ARKANSAS ACCOUNTABILITY PROJECT (ARAP)**

# **Council Briefing Book**

### **Automatic License Plate Reader (ALPR) Program City of Sherwood, Arkansas**

Prepared for the Mayor and Members of the Sherwood City Council

**Public Reference Edition  
Publication No. ARAP-PUB-2026-003  
Complete Version 2.1  
July 2026**

*Facts First. Questions Second. Conclusions Last.*

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## Statement of Professional Responsibility

The Arkansas Accountability Project (ARAP) is committed to objective, evidence-based review of public records. ARAP presents facts accurately, distinguishes evidence from opinion, identifies questions before conclusions, corrects errors when identified, and updates publications as additional evidence becomes available.

### Editorial Standard

*Facts First. Questions Second. Conclusions Last.*

## Letter to Council

This briefing has been prepared to assist the Mayor and Members of the Sherwood City Council by organizing records obtained through the Arkansas Freedom of Information Act into a concise reference for discussion.

It is intended to support informed oversight and respectful dialogue.

It does not advocate for or against ALPR technology and does not present legal conclusions.

## Sherwood ALPR Program Timeline

*"A clear understanding of events begins with a clear understanding of when they occurred."*

### Key Takeaways

- This timeline summarizes significant events documented in records reviewed by ARAP.
- It is intended to provide chronological context for Council discussion.
- Dates are based on records received through the Arkansas Freedom of Information Act and other publicly available sources.
- The timeline does not draw conclusions or assign significance beyond the documented events.

### Chronology of Documented Events

- 2022 - Earliest documented operational timeframe identified during ARAP's review; Sherwood begins implementation of an ALPR program using Flock Safety technology.
- 2022-2025 - Procurement records, contracts, amendments, correspondence, and related administrative records document continuing operation and administration of the program.
- January-June 2025 - Practice and usage reporting period reflected in records reviewed by ARAP.
- February 11, 2026 - Publicly available records reviewed by ARAP indicate ALPR technology was in operational use during this period.
- March 24, 2026 - Current written Sherwood Police Department ALPR policy adopted.
- June 29, 2026 - Subsequent correspondence clarifies that the Flock ID field identifies an individual search and that networkCount identifies the number of networks searched.
- July 2026 - ARAP receives native electronic audit exports, network audit records, contracts, procurement records, emails, and supporting documentation through Arkansas FOIA requests.
- July 2026 - ARAP revises its audit methodology to count distinct search IDs and remove duplicate records appearing in overlapping productions.
- July 2026 - ARAP identifies 1,177 distinct search IDs within the uploaded native audit exports.
- July 2026 - A concern is raised regarding the FOIA production of Flock imagery and associated information relating to a third-party vehicle.
- July 2026 - ARAP submits a follow-up request seeking internal communications and records concerning the production and any resulting review.
- July 27, 2026 - Sherwood officials discuss case-number requirements, audit safeguards, retention, traffic-enforcement limits, departmental expertise, and a reported successful use during a City Council meeting.

- Editorial cutoff - The available record does not establish whether a formal internal review of the questioned FOIA production was completed.

## Records Supporting the Timeline

- Procurement records
- Purchase requests
- Contracts and amendments
- Department policy
- Practice and usage reports
- Audit reports
- Native electronic audit records
- Network audit exports
- FOIA correspondence and production records
- Publicly available records
- City Council meeting video clips

## Why This Timeline Matters

Understanding when policies were adopted, records were created, and operational activities occurred provides context for evaluating the documentary record. This timeline is intended solely as a chronological reference and should not be interpreted as a finding concerning compliance or noncompliance with applicable law or policy.

## Executive Summary

Sherwood is currently the most complete evidentiary review undertaken by ARAP. Records reviewed include procurement documents, contracts, departmental policies, correspondence, audit reports, practice and usage reports, native electronic audit exports, network audit records, FOIA production records, and relevant public meeting statements.

## Key Takeaways

- This packet summarizes factual information documented by the records reviewed by ARAP.
- Statements are limited to information reflected in the documentary record as of the editorial cutoff.
- This packet intentionally avoids legal conclusions and does not determine whether any individual search was proper or improper.
- The objective is to provide Council members with a concise factual foundation before presenting discussion questions.
- Limited statistical verification has been completed for the uploaded native audit exports; the uploaded files do not constitute a complete continuous history for every date between February and July 2026.

## What the Records Show

### Program Administration

The City has maintained written documentation relating to the administration of its ALPR program, including procurement records, contracts, departmental policies, and administrative correspondence.

### Department Policy

A written Sherwood Police Department policy governing ALPR operations has been produced in response to Arkansas Freedom of Information Act requests. The policy establishes procedures governing operation of the system and provides the department's written guidance for authorized use.

## Procurement Documentation

Procurement records, purchase requests, contractual agreements, and related administrative records have been produced and reviewed. These records document the acquisition and administration of the ALPR program.

## Audit Documentation

Audit reports, native electronic audit records, and network audit records have been produced, permitting independent review of recorded system activity.

## Public Reporting

Practice and usage reports documenting aspects of ALPR operations have been produced and form part of the documentary record reviewed by ARAP.

## Statistical Review

ARAP completed a limited statistical review of the uploaded native audit exports. The analysis counted distinct Flock search IDs once and removed duplicate or overlapping rows. Coverage limitations remain and are expressly identified below.

## Policy, Governance, and Oversight

*"Well-informed questions strengthen public oversight."*

The following questions are based on records reviewed by ARAP as of the editorial cutoff. They are intended to encourage informed discussion and are not findings or allegations. Additional records or explanations may address some of these questions.

### LRQ-001 - Policy

Can you describe the department's process for reviewing and updating the ALPR policy, including how operational experience, legal developments, and best practices are considered?

### LRQ-002 - Policy

How are officers introduced to the policy, and what training or continuing education is provided regarding its requirements?

### LRQ-003 - Governance

How are procurement records, contracts, department policy, and administrative correspondence coordinated to ensure the ALPR program continues to operate in accordance with City policy and departmental procedures?

### LRQ-004 - Governance

What role do supervisory personnel play in reviewing program administration and ensuring that written policies remain current?

### LRQ-005 - Public Accountability

How does the department communicate information about the ALPR program to City leadership and to the public, and are there additional opportunities to improve public understanding of the program?

## Recent FOIA Correspondence and Audit Clarifications

### Purpose

Additional FOIA correspondence and native audit records provided further context concerning the administration, documentation, and oversight of the City's ALPR program. This section documents later clarifications, distinguishes confirmed facts from unresolved questions, and explains the corrected audit methodology.

## Clarification of Audit Fields

- The ID field identifies an individual Flock search.
- The networkCount field identifies the number of Flock networks included in that search.

An individual search can appear across overlapping productions, and a single search may reach multiple participating networks. ARAP therefore counted each distinct search ID once rather than counting every spreadsheet row as a separate search.

## Corrected Review Method

1. Each distinct Flock search ID was counted once.
2. Duplicate records appearing in overlapping exports were removed.
3. The visible reason and case-number fields were reviewed as they appeared in the released records.
4. The absence of a visible case number was not treated as proof that no associated case, incident, dispatch, or CAD record existed elsewhere.
5. No conclusion was reached concerning whether any individual search was authorized or unauthorized.

## Verified Audit Totals

| Audit measure                         | Result |
|---------------------------------------|--------|
| Total spreadsheet rows reviewed       | 1,493  |
| Distinct Flock search IDs             | 1,177  |
| Duplicate or overlapping rows removed | 316    |

These figures describe the uploaded audit records and should not be interpreted as a complete continuous history of all Sherwood ALPR searches for every day between February and July 2026.

## Search Reasons and Case-Number Documentation

ARAP's review found that many audit entries contained either no visible reason or only a general description such as "Investigation."

| Visible audit entry                           | Number of searches |
|-----------------------------------------------|--------------------|
| Blank reason field                            | 171                |
| Reason stated only as "Investigation"         | 349                |
| Investigation-related variants                | 410                |
| Blank reason or investigation-related variant | 581                |

The 581 searches represent approximately 49.4 percent of the 1,177 distinct search IDs reviewed.

This does not establish that those searches lacked a legitimate law-enforcement purpose. It also does not establish that a case number, incident number, dispatch record, or other supporting documentation did not exist in a separate system.

It does establish that the released Flock audit export, standing alone, often did not provide enough information for an outside reviewer to independently verify the connection between the search and an underlying case or incident.

## Public Statements and the Documentary Record

The following statements were preserved in individual video clips from the July 27, 2026 Sherwood City Council meeting. They provide context for the City's explanations of search documentation, auditing, retention, traffic enforcement, program oversight, and reported successful use of the ALPR system.

*A difference between a public statement and information visible in a released record does not necessarily establish that the statement was inaccurate. It may identify information maintained in another system or an issue requiring clarification.*

| Clip file                                    | Approximate length | Primary topic                         |
|----------------------------------------------|--------------------|---------------------------------------|
| 30 days is all we have(1).mp4                | 27.5 seconds       | Data availability and retention       |
| audit searches(1).mp4                        | 42.6 seconds       | Audit capability and potential misuse |
| Doesn't do traffic(1).mp4                    | 38.8 seconds       | Traffic-enforcement limits            |
| gotta have case numbers to search(1).mp4     | 14.6 seconds       | Case-number requirement               |
| Mayor trusting Chief and Police Force(1).mp4 | 25.0 seconds       | Reliance on departmental expertise    |
| successful use example from Chief(1).mp4     | 54.3 seconds       | Reported successful-use example       |

### 1. Case Numbers and Search Documentation

Speaker: Capt. Scott Hicks. Source clip: gotta have case numbers to search(1).mp4.

*"Anytime you search something, we have to have case numbers."*

The quoted wording is based on the supplied meeting clip. A full-meeting timestamp was not available in the provided source.

The statement appears to describe a departmental requirement that every Flock search be associated with a case number. The native audit exports reviewed by ARAP do not consistently display a recognizable case number for every search. Many entries contain a general reason, such as "Investigation," while others contain no visible reason in the released export.

This does not prove that an associated case number did not exist. The number may have been maintained in a separate incident report, CAD record, dispatch record, investigative file, or departmental database.

#### CDQ-018

Can the department describe the complete process used to connect each Flock search to a case, incident, dispatch, or CAD record, including where the identifying number is stored and how that connection is independently verified?

#### CDQ-019

When the visible Flock audit entry contains a blank reason or only a general term such as "Investigation," what additional record does a supervisor review to confirm that the search was conducted for an authorized purpose?

### 2. Audit Capabilities and Potential Misuse

Speaker: Capt. Scott Hicks. Source clip: audit searches(1).mp4.

The clip concerns the ability to review system activity through audit records and identify potentially improper searches. The discussion also appears to address disciplinary consequences when an employee uses the system for an unauthorized personal purpose.

An audit trail establishes that activity occurred, but the released audit trail may not independently establish why the activity was authorized. A meaningful audit may require comparison between the Flock search entry, the stated reason, the associated case or incident record, the identity and authority of the user, the geographic and network scope, and any required supervisory approval.

#### CDQ-020

Who performs the department's ALPR audits, how frequently are they conducted, and what percentage or category of searches is selected for review?

#### CDQ-021

Does the audit process compare the entered Flock reason with a separate case, incident, dispatch, CAD, or investigative record?

#### CDQ-022

Are audit findings documented in writing, and are exceptions, missing information, corrective actions, or disciplinary referrals retained as public records when applicable?

### 3. Thirty-Day Availability and Retained Records

Speaker: Capt. Scott Hicks. Source clip: 30 days is all we have(1).mp4.

*"Thirty days, that's all we have. If it is thirty-one days, we don't have it."*

The quoted wording is based on the supplied meeting clip. A full-meeting timestamp was not available in the provided source.

The statement appears to address the ordinary period during which captured information remains searchable or available within the Flock platform. Without additional context, it does not resolve whether information can be downloaded or exported before expiration, preserved in a case file, retained as evidence, maintained for an ongoing investigation, provided to a prosecutor, retained for litigation or a records request, or stored outside the ordinary Flock search interface.

The packet distinguishes between ordinary platform availability and separately preserved investigative or evidentiary records.

#### CDQ-026

Does the 30-day statement apply only to ordinary data availability within the Flock platform, or does it also include downloaded, exported, archived, and case-related ALPR records?

#### CDQ-027

What written procedure governs the preservation of ALPR information connected to an ongoing investigation or other authorized purpose?

#### CDQ-028

When ALPR information is preserved beyond the ordinary platform period, where is it stored, who may access it, and how long is it retained?

### 4. Traffic Enforcement

Speaker attribution to be confirmed from the source clip. Source clip: Doesn't do traffic(1).mp4.

The clip may document the City's explanation that the Sherwood ALPR program is not used for ordinary traffic enforcement. The exact language matters because the statement could refer to automated citations, routine traffic violations, speed or red-light camera functionality, investigative uses involving vehicles, or access by outside agencies. These are not equivalent claims.

For purposes of this edition, the statement is summarized rather than expanded beyond the wording supported by the supplied clip.

**CDQ-029**

Does the statement concerning traffic enforcement apply only to Sherwood Police Department users, or also to outside agencies accessing Sherwood camera data?

**CDQ-030**

Does "traffic enforcement" exclude searches connected to hit-and-run investigations, suspended licenses, warrants arising from traffic cases, or other offenses involving vehicles?

**CDQ-031**

Does the system technically prevent prohibited traffic-related uses, or does compliance depend on policy and subsequent auditing?

**5. Reliance on Departmental Expertise**

Speaker: Mayor, exact name and title to be confirmed. Source clip: Mayor trusting Chief and Police Force(1).mp4.

The mayor's comments concerning trust in the police chief, the police department, or departmental subject-matter expertise are relevant to the Council's oversight role. Professional expertise is important, but legislative oversight does not require Council members to choose between trusting department personnel and reviewing records. Both can occur simultaneously.

**CDQ-032**

What recurring information should the department provide so Council members can rely on professional expertise while independently carrying out their oversight and budget responsibilities?

**6. Reported Successful-Use Example**

Speaker: Police chief, exact name and title to be confirmed. Source clip: successful use example from Chief(1).mp4.

The successful-use example is included because a neutral review should document both governance concerns and reported public-safety benefits. The example should identify only facts stated during the meeting unless supported by a separate incident report or public record. This packet does not add details such as an arrest, prosecution, recovery, or conviction unless the supporting record confirms that outcome.

**CDQ-033**

Does the department maintain a consistent method for documenting when an ALPR search materially assists an investigation?

**CDQ-034**

How does the department distinguish a Flock alert, an investigative lead, an arrest, a prosecution, and a final case disposition when reporting program results?

**Scope of Network Searches**

The native records include a networkCount field identifying the number of Flock networks included in certain searches. A large network count does not, by itself, establish that a search was improper. A broader search may be appropriate depending on the facts of an investigation, the possible movement of a vehicle, or the location of a wanted person.

Broader network access nevertheless presents a distinct oversight issue because the search may reach data collected outside Sherwood and potentially outside Arkansas.

**CDQ-023**

What factors determine whether a search is limited to Sherwood cameras or expanded to additional Flock networks?

### CDQ-024

Are searches involving a large number of outside networks subject to additional justification, approval, or later supervisory review?

### CDQ-025

Does the department periodically evaluate whether broad network searches remain proportionate to the purpose stated in the audit entry?

## Recent FOIA Production Concern

A recent FOIA production included Flock imagery and associated information relating to a vehicle selected by the requester as part of an effort to evaluate the City's records-response process.

The vehicle was not represented as belonging to the requester.

This event raises a records-management question concerning how ALPR images, plate information, timestamps, locations, and associated data are reviewed before public release.

This section does not determine that the production was unlawful. It documents that the release occurred and identifies questions concerning the City's review, redaction, and approval process.

### Questions Raised by the Production

- Who selected the responsive Flock records?
- Who reviewed the records before release?
- What redactions were considered?
- Were images and structured data reviewed separately?
- Did the City apply a written ALPR-specific FOIA procedure?
- Did supervisory or legal review occur?
- Did an internal review follow the concern?
- Were any procedural changes adopted?

### CDQ-035

What written process governs the review and release of ALPR images and related data in response to an Arkansas FOIA request?

### CDQ-036

Which City employee or office is responsible for determining what ALPR information must be released, withheld, or redacted?

### CDQ-037

Did the City conduct an internal review concerning the recent production of imagery and data associated with a third-party vehicle?

### CDQ-038

Were the mayor, City Attorney, police chief, or members of the Council informed of the incident, and were any corrective procedures adopted?

### CDQ-039

Will the City provide the Council with a written description of its current ALPR records-review and redaction procedure?

## Status of Follow-Up Records

ARAP submitted a follow-up request seeking internal communications and records concerning the City's handling of the questioned release.

As of the editorial cutoff, the records available to ARAP do not establish:

- whether a formal internal review was completed;
- which officials participated in any review;
- whether the release was determined to be consistent with City procedures;
- whether any employee guidance was issued; or
- whether the City revised its review or redaction process.

## Council Discussion Questions

The following original questions remain part of this complete edition and should be considered together with the additional questions above.

### CDQ-007

Can you describe the audit process used by the department, including how activities are selected for review, how findings are documented, and how any follow-up actions are tracked?

### CDQ-008

How are these electronic records used by supervisors to support accountability, internal review, and program oversight?

### CDQ-009

Can you explain how Sherwood evaluates requests for information sharing, what safeguards exist to ensure authorized access, and how those activities are documented?

### CDQ-010

How does the department periodically review information-sharing practices to ensure they remain consistent with department policy and applicable law?

### CDQ-011

Can you explain how the department determines what information is included in practice and usage reports and whether additional context could assist Council members and the public?

### CDQ-012

As the Council considers future oversight of the ALPR program, are there additional reports, metrics, or periodic updates that would support transparency and informed decision-making?

## Transparency, Accountability, and Future Reporting

*"Transparency is strengthened when public reporting is understandable, consistent, and supported by documented records."*

### CDQ-013

How does the department determine which information is included in reports, and are there additional categories that would help Council members and residents better understand program operation?

### CDQ-014

How does the department ensure reports remain accurate, understandable, and consistent over time?

### CDQ-015

How are significant program changes, policy updates, or operational developments communicated to City leadership?

### CDQ-016

Looking ahead, what additional information or periodic reporting would help the Council oversee the program while maintaining public confidence?

### CDQ-017

Are there opportunities to strengthen transparency, public education, or reporting practices as the program continues to mature?

## Updated Key Takeaways

- Later FOIA correspondence clarified that the Flock ID field identifies an individual search and that networkCount identifies the number of networks searched.
- Counting distinct search IDs corrected duplication caused by overlapping audit exports.
- The uploaded CSV records contained 1,177 distinct search IDs.
- Many released audit entries contained either no visible reason or only a general investigation description.
- The absence of a visible case number does not prove that no case record existed elsewhere.
- Public statements indicate that Sherwood requires case numbers and relies on auditing as an internal safeguard.
- The present record does not fully explain where required case numbers are stored or how auditors verify them.
- The 30-day retention statement requires clarification concerning downloaded, exported, or separately preserved ALPR records.
- The traffic-enforcement statement requires clarification concerning its scope and whether it applies to outside agencies.
- The successful-use example should be documented using consistent outcome categories and supporting records.
- A recent FOIA production raises questions concerning review, redaction, approval, and follow-up procedures for ALPR records.
- These matters are presented as oversight questions, not findings of misconduct or noncompliance.

## Sherwood Documentary Record Summary

This appendix identifies the documentary record referenced throughout this publication. Collection names are retained to correspond with the underlying documentary record.

- Sherwood Administrative Correspondence
- Sherwood Practice and Usage Reports
- Sherwood Audit Reports
- Sherwood Native Electronic Audit Records
- Sherwood Network Audit Records
- Sherwood FOIA Production Records
- Later FOIA correspondence clarifying audit fields
- Native CSV audit exports and deduplication analysis
- Twelve-hour shift analysis workbook
- July 27, 2026 City Council meeting video clips
- Records concerning the questioned FOIA production
- Follow-up FOIA request and related responses

## Editorial Standard

*No conclusion without supporting documentary evidence.*

## Authorities and Record Sources

### Primary Authorities

- Arkansas Code Annotated §§ 12-12-1801 through 12-12-1808
- Arkansas Freedom of Information Act
- Department policies and publicly released records

## Record Sources

- FOIA productions received from Sherwood
- Department policies
- Contracts and procurement records
- Audit and usage reports
- Native electronic exports
- Network audit records
- FOIA correspondence
- City Council meeting video clips

## Version History

Version 2.1 - July 2026: Converted the prior Version 2.0 briefing and the later Version 2.1 update into a single complete Council Briefing Book; corrected the project name and publication identifier to Arkansas Accountability Project (ARAP) and ARAP-PUB-2026-003; added later FOIA correspondence clarifying native audit fields and search-count methodology; incorporated verified distinct-search totals and preliminary reason-field analysis; integrated public statements from the July 27, 2026 Sherwood City Council meeting concerning case-number documentation, audit safeguards, retention, traffic enforcement, reliance on departmental expertise, and a reported successful use; expanded discussion of network scope and ALPR-record review before FOIA release; and added Council Discussion Questions CDQ-018 through CDQ-039.

## Closing

This publication is offered for consideration to assist informed public discussion regarding the administration and oversight of automated license plate reader programs. It is intended to encourage thoughtful review of the documentary record while remaining neutral and evidence-based.

## Editorial Commitment

- Evidence before conclusions
- Neutral presentation
- Respect for public records
- Professional and factual tone